

25CHCV00731 25CHCV00731

County: los-angeles

Division: Civil Law and Motion

Department: F49

Hearing date: 2026-09-17

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Case Number: 25CHCV00731 Hearing Date: September 17, 2026 Dept: F49

Dept. F49

Date: 9/17/26

Case Name: Janeth Lizbeth Roldan; Juan Carlos Mendez
vs. Elman Rene Chacon Venura; and Does 1-10

Case No. 25CHCV00731

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

SEPTEMBER 17, 2026

MOTION TO DEEM

REQUESTS FOR ADMISSION ADMITTED; REQUEST FOR SANCTIONS

Los Angeles Superior

Court Case No. 25CHCV00731

Motion filed: 4/8/26

MOVING PARTY: Defendant Elman Rene Chacon Ventura

RESPONDING PARTY: Plaintiff Janeth Lizbeth Roldan

NOTICE: OK

RELIEF REQUESTED: An order from this Court deeming the truth of each matter specified in Defendant's Requests for Admission, Set One; and awarding monetary sanctions in the amount of \$535.00.

TENTATIVE RULING: The motion is DENIED. The request for sanctions is GRANTED IN PART.

BACKGROUND

This action arises from injuries allegedly sustained by Plaintiffs Janeth Lizbeth Roldan ("Roldan") and Juan Carlos Mendez ("Mendez") (collectively, "Plaintiffs") in a motor vehicle accident that occurred on March 16, 2023. On February 27, 2025, Plaintiffs filed the Complaint against Defendant Elman Rene Chacon Ventura ("Defendant") and Does 1 through 10, alleging motor vehicle and general negligence.

On June 20, 2025, Defendant filed an Answer to the Complaint.

On April 8, 2026, Defendant filed the instant motion to compel Roldan to respond to Defendant's Form Interrogatories, Set One, and Special Interrogatories, Set One (the "Motion").

On September 8, 2026, Roldan filed an Opposition.

On September 10, 2026, Defendant filed a Reply.

ANALYSIS

A.

Motion to Deem Requests for Admission
Admitted

"A defendant may make requests for admission by a party without leave of court at any time." (Code Civ. Proc. §

2033.020, subd. (a).) "Within 30 days after service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party." (§ 2033.250, subd. (a).)

If a party fails to serve timely responses to requests for admission, the party to whom the requests are directed waives any objection to the requests, and the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified be deemed admitted. (Code Civ. Proc. § 2033.280, subds. (a), (b).) Unless the court "finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220," the court must grant the motion. (§ 2033.280, subd. (c).)

The Court may, on motion, relieve a party of the waiver of objection if the party subsequently serves a response that substantially complies with the statutory requirements and the failure to serve a timely response "was the result of mistake, inadvertence, or excusable neglect." (Code Civ. Proc., § 2033.280, subd. (a).)

Defendant seeks an order deeming the truth of each matter specified in his Requests for Admission, Set One, served on Roldan on February 20, 2026. In Opposition, Roldan asserts that she served verified responses to the interrogatories on June 2, 2026. (Opp'n, at p. 1.) Plaintiffs' counsel attests that the responses were electronically served after he re-established contact with Roldan in late May 2026. (Jimenez Decl., ¶¶ 3-4.) Defendant acknowledges that Roldan served verified responses to the requests. (Reply, at p. 1.) However, Defendant contends that the belated service does not excuse the failure to respond that necessitated the Motion and argues that sanctions are still warranted. (Reply, at pp. 2-3.)

Accordingly, the Court DENIES the Motion to deem the requests admitted as moot. The Court retains authority to consider the issue of sanctions.

B.

Monetary Sanctions

"It is mandatory that the court impose a monetary sanction ... on the party or attorney, or both, whose failure to serve a timely response to requests for admission

necessitated [filing a] motion.” (Code Civ. Proc., § 2033.280, subd. (c).)

Code of Civil Procedure section 2023.030, further, authorizes the Court to impose monetary sanctions against any party, person, or attorney who engages in conduct that constitutes a misuse of the discovery process. Misuses of the discovery process include failing to respond to an authorized method of discovery. (Code Civ. Proc., § 2023.010, subd. (d).)

It is undisputed that Roldan failed to serve timely responses to Defendant's requests for admission and the failure necessitated the filing of the Motion. Sanctions are therefore mandatory under the circumstances.

In the motion papers, Defendant requests monetary sanctions against Roldan and her counsel of record in the amount of \$535.00, calculated as 1.9 hours spent preparing the Motion at an hourly rate of \$250.00, plus \$60.00 in filing fees. (Nguyen Decl., ¶¶ 7-11.) However, in Reply, Defendant requests a total of \$825.00, adding 1.4 hours spent reviewing the Opposition and preparing the reply papers. (Suppl. Nguyen Decl., ¶¶ 6-7.)

The Court notes that the Notice of Motion and Motion and supporting papers do not indicate that Defendant is seeking fees beyond those incurred for preparation and filing of the motion papers and do not reserve the right to supplement or seek additional fees. The Court accordingly finds that there is inadequate notice for an award greater than the reasonable costs and fees connected with the moving papers.

Roldan asserts that the requested sanctions are unreasonable given the lack of complexity of the Motion. (Opp'n, at p. 2.) The Court agrees that the Motion presented a straightforward issue directed to lack of service of initial discovery responses. The Court therefore finds the total and reasonable fees and costs incurred in connection with preparing and filing the Motion to be \$185.00, calculated as 0.5 hours spent preparing the Motion at a reasonable hourly rate of \$250.00, plus the \$60.00 filing fee.

Defendant's request for monetary sanctions is thus GRANTED IN PART.

CONCLUSION

The Court DENIES Defendant's motion to deem the truth of matters specified in his Requests for Admissions, Set One.

Defendant's request for sanctions is GRANTED IN PART. Plaintiff Janeth Lizbeth Roldan and her attorney of record are ordered to pay \$185.00, jointly and severally, to Defendant within 30 days.

Moving party to give notice.